(v) The members of the Federal Council act both collectively as well as individually. Collectively, they make all the executive decisions of the federal government and individually, they act as the heads of the departments of the federal government.

(vi) All the seven members of the Federal Council are vested with co-equal authority. The President does not possess any special powers. He/she is only a primus inter pares (first among equals). He/she acts as a nominal head of the Swiss federal republic and performs the ceremonial duties. Hence, his/her authority cannot be compared with that of the British Prime Minister or the American President.

(vii) The members of the Federal Council are not the members of the Federal Assembly. However, they participate in the deliberations of the Federal Assembly but without the right to vote. Further, they cannot be removed from their office by the Federal Assembly either by passing a motion of no-confidence as in the case of British Cabinet or by passing a resolution of impeachment as in the case of American President.

(viii) The Federal Council is non-partisan in nature. It is composed of the members who belong to different political parties. But, they do not work on party lines.

From the above, it is clear that the Swiss executive is basically different from both, the British executive and the American executive. According to C.F. Strong, the Swiss executive system combines the merits and excludes the defects of both the parliamentary and presidential executive systems.

5. Bicameralism The Swiss Federal Legislature called the Federal Assembly is bicameral, that is, it consists of two houses, namely, the Council of States and the National Council. The Council of States is the upper house (chamber) and while the National Council is the lower house (chamber). The Council of States is composed of 46 representatives of the cantons. The full cantons elect two representatives each while the half cantons elect one representative each. This means that the cantons, irrespective of their size and population, are provided equal representation in the Council of States like that of the American Senate. The cantons determine the rules for the election of their representatives to the Council of States. Hence, the mode of election and the tenure of the representatives to the Council of States varies from canton to canton. In some cantons, they are elected by the cantonal legislatures while in some other cantons, they are elected directly by the people. Similarly, their tenure also varies from one year to four years.

The National Council is composed of 200 representatives of the people. These representatives are elected directly by the people according to a system of proportional representation. Their term of office is four years. The two chambers in Switzerland are of equal standing and have equal powers. C.F. Strong, in this context, observed: “The Swill legislature like the Swiss executive is unique; it is the only legislature in the world the powers of whose upper house are in no way different from those of the lower house”.

6. Direct Democracy The Swiss constitution provides for the operation of the direct democracy and thereby enables the people to directly participate in the affairs of the state. It specifies two direct democratic devices, namely, referendum and initiative. There are two types of referendum – mandatory and optional.

(i) Mandatory Referendum: The following must be put to the vote of the people and the cantons:

(a) Amendments to the constitution.

(b) Accession to organizations for collective security or to supranational communities.